

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**

Office of City Clerk

June 11, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. via WebEx Electronic Conference Meeting for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy Fakelman, Deputy City Attorney; Robin Lockman, City Treasurer and Chief Greg Hoggatt, Fire and Rescue Department.

Pursuant to Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows, Mayor Orr advised the governing body would be going into executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further explained when the governing body met in executive session, they would be meeting in a private electronic conference, and that Fire Union representatives will meet privately off-line for the purpose of meeting to caucus.

Michael O'Donnell, City Attorney, provided a review and the results as negotiated from the May 28<sup>th</sup> Special Meeting of the Governing Body for the purpose of Collective Labor Bargaining with Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Mr. O'Donnell explained that a calculation error was discovered by the City Treasurer in regards to the Union's proposed 1% base pay cut which resulted in a shortage of \$57,687.00. It was further clarified that the proposed 1% base pay cut dollar amount presented by the Union would actually result in a 2.81% base pay cut. David Evans, Attorney representing the Union, provided comments relating to the calculation error and advised the Union is not willing to accept a 2.81% base pay cut. Mr. Evans advised the Union's modified offer includes the following changes: Add base salaries estimate back in eliminating pay cut and reduction in force by attrition of 3 members by 3 retirements in July, October and December bringing the number of members to 88 down from 91.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Shanor moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body. Upon inquiry, Kris Jones, City Clerk, clarified that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:20 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:00 p.m. Mr. O'Donnell reported the City proposes to accept the modified Union offer with a 1% base pay cut and the reduction of members from 91 to 88 through attrition.

Mr. Evans requested a recess for purpose of going in caucus at 7:08 p.m. Following the Union requested caucus at 7:10 p.m. Mr. Evans advised the Union is offering to remove the proposed pay cut all together, eliminate uniform allowance for one year, go from 4 to 3 for EOD slots, and reduce staffing level from 91 to 88 through attrition from 3 proposed retirements. He explained the Union is not in favor of the proposed pay cut. Discussion included confusion regarding previous calculation error, time necessary to properly calculate proposed changes and uncertainty regarding overtime cost estimates.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Case moved to meet in executive session, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body. It was clarified that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 7:20 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:48 p.m. Mr. O'Donnell advised the City counter offers a 1% pay cut, reduction of EOD from 4 to 3, that current overtime budget is \$440,000.00 and that any savings realized through reduced overtime that adds up to \$91,615 would be returned in base pay as incentive to reduce actual overtime expenses. Discussion included: Continued comments relating to ability to provide calculated cost estimates of offers and counter offers made during the meeting and responsibility of managing overtime-Fire Chief or Firefighters. Mayor Orr stated for the record that providing accurate cost estimates requires time to appropriately calculate adjustments and should not be done quickly. Robin Lockman, City Treasurer, upon inquiry, reported there are many factors and variables involved in calculations involving overtime compensation. Ms. Lockman further advised the amount quoted for savings of the 3 proposed retirements includes required accrual pay outs. Comments were made regarding time frame in which negotiations and fiscal year budget will need to be approved.

Mr. Evans requested a recess for the purpose of going in caucus at 8:07 p.m. Following the Union requested caucus at 8:23 p.m., Mr. Evans advised he has tried to remain optimistic regarding coming to an agreement with the City and stated the Union offers their last offer or they will accept the City's offer with 4 EOD slots and without the 1% pay cut.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body. It was clarified that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 8:30 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 9:08 p.m. Mr. O'Donnell advised the City counter offers with their final offer which is the City offer from the May 28<sup>th</sup> Special Meeting to include: adding back in 3 Firefighters and longevity pay, subtract administrative savings per Chief Hoggatt, subtract Fire Administration and Suppression Uniform line items, subtract savings due to EOD change (with sunset date), subtract base salaries by 2.81% and use \$57,687.00 of reserves as a placeholder. Discussion included projected costs and savings of proposed offer.

Mr. Evans requested a recess for purpose of going in caucus at 9:14 p.m. Following the Union requested caucus at 9:38 p.m., Mr. Evans stated the Union cannot and will not accept the proposed 2.81% pay cut and inquired about setting up an additional meeting. Mr. Evans advised the Union would like to counter offer with the following changes to their previous offer: subtract base salaries by 1.5% (\$111,068.00), subtract reduction in force by attrition (\$91,615.00) and additional to be pulled from reserves (\$5,317.00). Comments were made relating to the City's final offer and potential to table the discussion. Mr. Case moved to table the Union's last offer to June 15, 2020, seconded by Mr. Cook. Motion failed. Voting "yes"-Mr. Case, Mr. Cook, Mr. Luna, and Mr. Shanor. Voting "no"- Mr. Esquibel, Mr. Laybourn, Mayor Orr, Dr. Rinne, Mr. Roybal and Mr. White.

Discussion involved consensus of finality of the City's last offer and limited time frame involved for further negotiations and budget approval. It was noted for the record that there was no motion or vote to approve or deny the Unions last offer.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 9:53 p.m.

Submitted by,

Kristina F. Jones  
City Clerk

This notice is available in alternative, accessible formats upon request.

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